CHAPTER 91 Landmark Judgements and Their Impact

Romesh Thappar Case (1950)

Name of the Case	: Romesh Thappar vs. State of Madras
Year of Judgement	: 1950
Popular Name	: Cross Roads case
Related Topic/Issue	: Freedom of the press
Related Article/Schedule	: 19

Supreme Court Judgement: It held that the freedom of speech and expression under Article 19(1)(a) includes freedom of propagation of ideas, and that freedom is ensured by the freedom of circulation. It also ruled that without liberty of circulation, the publication would be of little value. Therefore, the order of the Madras government banning the entry and circulation of the weekly English Journal Cross Roads published at Bombay was declared as unconstitutional and void. The Madras government had issued the banning order under the provisions of Section 9 (1-A) of the Madras Maintenance of Public Order Act, 1949. The Supreme Court observed that the freedom of speech and freedom of the press lay at the foundation of all democratic organisations, because without free political discussion no public education (which is so essential for the proper functioning of the process of popular government) is possible.

Impact of the Judgement: As a sequel to this judgement, the 1st Amendment Act (1951) added “public order” as a reasonable restriction under Article 19(2) on the freedom of speech and expression. The Supreme Court held that restrictions on the freedom of speech and expression could be imposed only on the grounds mentioned in Article 19(2). Accordingly, the court refused to permit restrictions on the ground of public order because it was not mentioned in Article 19(2). It said that the ordinary or local breaches of public order were no grounds for imposing restrictions on the freedom of speech and expression. It further observed that the term “public order” has wide connotation and signifies that state of tranquility which prevails among the members of political society as a result of internal regulations enforced by the government which they have established.

A.K. Gopalan Case (1950)

Name of the Case	: A.K. Gopalan vs. State of Madras
Year of Judgement	: 1950
Popular Name	: Preventive Detention case
Related Topic/Issue	: Procedure established by law
Related Article/Schedule	: 21 & 22